

25SMCV01647 25SMCV01647

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-11

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

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CASE NUMBER

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MOTION

Dismiss

for Failure to Prosecute

MOVING PARTY

Defendants

Michael Freeman and Ninoska Freeman

OPPOSING PARTY

none

MOTION

This case arises from a dispute concerning a motor vehicle collision

On April 1, 2025, Plaintiffs Gustavo Calvo and Miguel Gonzalez ("Plaintiffs") filed suit against Defendants Michael Freeman and Ninoska Freeman ("Defendants") alleging two causes of action for (1) motor vehicle and (2) general negligence.

Defendants now move for an order dismissing the complaint for failure to prosecute, pursuant to Code of Civil Procedure sections 583.410 et seq. The motion is unopposed.

DISCUSSION

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).) Notwithstanding,

The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred:

(1) Service is not made within two years after the action is commenced against the defendant.

(2) The action is not brought to trial within the following times:

(A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.

[...]

(Code

Civ. Proc., § 583.420, subd. (a), emphasis added.)

Here, Defendants seek dismissal

pursuant to section 583.420, subdivision (a)(2)(B) and California Rules of Court, rule 3.1342.

As a threshold matter, the Complaint

was filed on April 1, 2025, and the hearing on this motion is set for August 11, 2026, less than two years after the Complaint was filed.

Moreover, Rule 3.1342 does not grant

the Court authority to deviate from the rule of Code of Civil Procedure section 583.420, subdivision (a)(2)(A), permitting dismissal only after three years have lapsed since the commencement of the action. Rather, Rule 3.1342 merely provides the time periods for providing notice of the motion, the written opposition, response to the written opposition, and reply to the response to opposition, as well as the factors courts are to consider when deciding the motion. (Cal. Rules of Court, rule 3.1342(a)-(e).) It also permits the Court generally to grant, deny, or defer ruling on the motion. (Cal. Rules of Court, rule 3.1342(f).)

CONCLUSION AND ORDER

Finding the criteria under Code of

Civil Procedure section 583.420, subdivision (a)(2)(B) has not been met, the Court denies Defendants' motion to dismiss without prejudice.

Defendants shall provide notice of

the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 11, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court